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CASE #	CASE NAME	HEARING NAME
CVME2517449	HONOR HAMER VS ORCHARD CHURCH FORWARD, LLC	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: Demurrer to Causes of Action 1-11 sustained with 20 days leave to amend. Request for Judicial Notice Denied.

Background - Plaintiff has sued her former employer Defendant, alleging she was wrongfully terminated from her clerical position and various violations of the Fair Employment and Housing Act ("FEHA"). Defendant now demurs to all causes of action alleged against it in Plaintiff's operative First Amended Complaint ("FAC").

Plaintiff alleges that on December 5, 2024, Plaintiff began working for ORCHARD CHURCH as an Administrative Assistant. (FAC, ¶ 13.). Plaintiff's role changed to Receptionist on August 12, 2025. (FAC, ¶ 30.) On October 21, 2025, Plaintiff was forced to resign as result of intolerable work conditions, which constituted a constructive termination. (FAC, ¶ 36.)

The First Amended Complaint alleges eleven causes of action: (1) gender discrimination; (2) harassment based on gender; (3) race discrimination; (4) hostile work environment; (5) retaliation; (6) failure to prevent discrimination, harassment, and/or retaliation; (7) intentional infliction of emotional distress; (8) negligent infliction of emotional distress; (9) sexual harassment; (10) wrongful termination; and (11) failure to provide personnel records.

Defendant demurs to all eleven causes of action on two primary grounds: (1) Defendant is not classified as an "employer" for purposes of the provisions of the Fair Employment and Housing Act (Gov. Code, § 12926(d)), and (2) the causes of action are further barred by the ministerial exception under the First Amendment of the United States Constitution.

Meet and Confer - Defendant properly met and conferred before filing the demurrer. Code of Civil Procedure sections 430.41 requires the demurring party to meet and confer "in person or by telephone with the party who filed the pleading." (Code Civ. Proc., § 430.41(a).) The parties must meet and confer "at least five days before the date the responsive pleading is due." (Code Civ. Proc., § 430.41(a)(2).) Here, Defendant's demurrer was concurrently filed with the declaration of its counsel, Tessa S. Markiewicz, stating that she spoke with Plaintiff's counsel by telephone on May 6, 2026. (Markiewicz Decl., ¶ 7.) This effort was follow-up in writing, but the parties did not reach a resolution. (Id. at ¶ 8.)

Request for Judicial Notice - Defendant's request for judicial notice is denied. (*Hughes v. Blue Cross of N. Cal.*, 215 Cal. App. 3d 832, 865, fn. 2 (1989) [declining to take judicial notice of materials prepared by private parties and merely filed with state agencies as official acts pursuant to Evid. Code, § 452(c)].)

Legal Standard - A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., §430.10(e).) In evaluating a

demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law (*Daar v. Yellow Cab Company* (1967) 67 Cal. 2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

The FEHA Religious-Entity Exemption Is Meritorious - FEHA prohibits an employer from discharging an employee based on protected characteristics. (Gov. Code, § 12940(a).) With limited exceptions, nonprofit religious associations or corporations are not employers under FEHA. (Gov. Code, § 12926(d); 2 CCR § 11008(d)(5); *Henry v. Red Hill Evangelical Lutheran Church of Tustin* (2011) 201 Cal. App. 4th 1041, 1049 (Henry).) Plaintiff accepts that Defendant is a church within that exclusion. In her opposition, Plaintiff concedes that FEHA excludes religious institutions.

Because Defendant is a nonprofit religious organization and Plaintiff concedes Defendant falls within the FEHA exemption, the first through sixth causes of action fail to the extent they allege violations of FEHA. These causes of action explicitly invoke FEHA as their statutory basis. Similarly, the ninth cause of action for sexual harassment and the tenth cause of action for wrongful termination are expressly pleaded under FEHA and therefore fail.

The remaining causes of action — the seventh (intentional infliction of emotional distress), eighth (negligent infliction of emotional distress), and eleventh (failure to provide personnel records) — are derivative of and dependent upon the FEHA claims. The eighth cause of action alleges "that Defendants 'knew or should have known that their failure to exercise due care in supervising, disciplining, and directing their employees would cause Plaintiff severe emotional distress'" (Reply, 6:10-17.) This is based on the same alleged conduct underlying the Sixth Cause of Action, namely, the alleged failure to properly supervise, discipline, and direct employees with respect to harassment, discrimination, and retaliation. (*Ibid.*) Because these derivative claims rest on the same conduct underlying the failed FEHA claims, they fall with them.

Leave to Amend Should Be Granted Because the Pleading Is Capable of Amendment - FEHA is not the exclusive remedy for employment discrimination. (*Silo v. CHW Med. Found* (2002) 27 Cal. 4th 1097, 1104 (Silo).) A discharged employee may recover in tort for wrongful termination violating public policy. (*Henry, supra*, 201 Cal. App. 4th at 1050.) California recognizes a public-policy exception to at-will employment. (Lab. Code, § 2922; *Jennings v. Marralle* (1994) 8 Cal. 4th 121, 129; *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal. 3d 167, 170, 178.) The public policy supporting a wrongful-termination claim must derive from a constitutional or statutory provision. (*Stevenson v. Superior Court* (1997) 16 Cal. 4th 880, 894.)

Here, FEHA itself cannot supply the public policy where the defendant is exempt from FEHA. (*Jennings, supra*, 8 Cal.4th at 135-136; *Henry, supra*, 201 Cal.App.4th at 1050-

1052; *Phillips v. ST. Mary Reg'l Med. Ctr.* (2002) 96 Cal. App. 4th 218, 227-229 (Phillips).) However, as Plaintiff notes, California Constitution, article I, section 8 may supply an independent public-policy basis to plead her claims. For instance, FEHA-exempt religious employers may still be sued for wrongful termination in violation of article I, section 8, which provides “[a] person may not be disqualified from entering or pursuing a business, profession, vocation or employment because of sex, race, creed, color or national or ethnic origin.” (*Rojo v. Kliger* (1990) 52 Cal. 3d 65, 89 [Tameny claim based on sex discrimination and sexual harassment]; *Carmichael v. Alfano Temporary Pers.*, (1991) 233 Cal. App. 3d 1126, 1132 [claim based on racial discrimination].)

The FAC presently alleges causes of action only under FEHA. The FAC does not allege violations of article I, section 8, Title VII, or any other independent constitutional or statutory provision capable of supporting a common-law wrongful-termination claim. Plaintiff's opposition acknowledges this deficiency, requesting leave to amend to explicitly allege the public policies enshrined in article I, section 8 of the California Constitution and Title VII of the Civil Rights Act of 1964, common law battery, and other torts as the bases for these causes of action.

Therefore, to the extent Plaintiff can amend to allege claims based on constitutional violations or common-law torts grounded in independent sources of public policy, leave to amend is granted.

The Ministerial Exception Cannot Be Resolved on Demurrer - Defendant argues alternatively that the ministerial exception bars all causes of action. The ministerial exception is a constitutionally compelled doctrine under which the First Amendment Religion Clauses preclude application of antidiscrimination laws to the employment relationship between a religious institution and its clergy. (*Hosanna-Tabor Evangelical Lutheran Church & School v. EEOC* (2012) 565 U.S. 171, 186-188; *Our Lady of Guadalupe Sch. v. Morrissey-Berru*, (2020) 591 U.S. 732, 746-748.)

Sumner v. Simpson University (2018) 27 Cal. App.5th 577, 579-580 (Sumner) explains that the First Amendment guarantees religious institutions the right to decide matters affecting their ministers' employment free from civil-court scrutiny. The exception is nonstatutory and constitutionally compelled, and it bars a minister's discrimination suit based on the church's firing decision.

The exception applies not only to ordained ministers but also to nonordained employees with duties functionally equivalent to ministers. (See *Sumner, supra*, 27 Cal.App.5th at 587-588.) There is no rigid formula. Courts consider factors including whether the employee was held out as a minister, held herself out as one, had a ministerial title, received significant religious training, and performed duties reflecting a role in conveying the church's message and mission. (*Hosanna-Tabor Evangelical Lutheran Church & School v. EEOC* (2012) 565 U.S. 171, 191-192; *Sumner, supra*, 27 Cal. App.5th at 587-588.) But the exception does not extend to employees performing purely secular work. (*Hope Int'l Univ. v. Superior Court* (2004) 119 Cal. App. 4th 719, 738.)

The parties do not dispute that Defendant is a religious organization. They dispute whether Plaintiff's duties were functionally equivalent to that of a minister. Plaintiff

alleges she was a purely clerical administrative assistant and receptionist. The FAC does not allege that she taught Christianity or led prayer or worship. At most, it states that she may have gone beyond her assigned duties by 'volunteering' for church events, outreach programs, and ministry projects. Defendant reads the FAC to reflect that Plaintiff consistently went beyond her assigned duties and argues that these allegations establish ministerial functions.

Given the it is a fact-driven inquiry, whether Plaintiff's duties were functionally equivalent to a minister's is a factual question not resolvable on demurrer. (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 113-114.) A demurrer tests legal sufficiency only; it is not the procedure for determining the truth of disputed facts. The hearing may not be turned into a contested evidentiary hearing. (*Ibid.*)

Drawing all reasonable inferences in Plaintiff's favor, the FAC alleges that she performed receptionist and administrative-assistant duties and that her participation in church events was voluntary and beyond her assigned duties. Whether those duties were in fact ministerial in nature is a question that requires factual development and cannot be resolved by accepting the allegations as true on demurrer.

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CASE #	CASE NAME	HEARING NAME
CVME2604863	PINTADO VS DCH TEMECULA MOTORS LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is granted. Case is stayed pending arbitration. Plaintiff's Evidentiary Objections sustained in part/overruled in part. Defendant's objections are overruled. Leave to conduct limited discovery is denied.

Evidentiary Objections - Plaintiff objects to the following portions of the Declaration of Michelle Rummer submitted in support of Defendant's motion: Objection No. 1 (¶ 11) – Objects to the statement that Plaintiff does not dispute that he signed the Arbitration Agreement on September 16, 2025, as vague and ambiguous, lack of foundation and personal knowledge, and misstatement of the date. Sustained. Objection No. 2 (¶ 11) – Objects to the original declaration's misstatement of the date as September 16, 2025, when exhibits show September 16, 2024. Overruled as moot (corrected declaration filed). Objection No. 3 (¶ 13) – Objects that the statement no one, inclusive of Plaintiff, has contested the Arbitration Agreement is vague, ambiguous, and misleading. Sustained. Objection No. 4 (¶ 13) – Objects that the statement Plaintiff did not have any questions regarding the Arbitration Agreement lacks foundation and personal knowledge. Sustained. Objection No. 5 (¶ 13) – Objects that the statement Plaintiff provided his e-signature on the document on July 27, 2024, misstates the contents of the exhibits. Overruled as moot (corrected declaration filed).

Defendant objects to paragraphs 3–8, 14–15 of the Declaration of Mitchell J. Murray on relevance and/or hearsay grounds. Objection Nos. 1–6 (¶¶ 3–8, Exs. 1–3) – Objects to evidence regarding CPR donor lists, CPR board composition, and the at-will employment agreement as irrelevant. Overruled. Objection No. 7 (¶¶ 9–14, Exs. 4–7) – Objects to the Olasaba case materials as irrelevant and hearsay. Overruled. Objection